

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS
CONFERENCE, AMERICAN TRUCKING
ASSOCIATIONS, INC.,

Complainant,

v.

OCEAN CARRIER EQUIPMENT
MANAGEMENT ASSOCIATION, INC., *et*
al.,

Respondents.

Docket No. 20-14

**MOTION OF THE UNITED STATES DEPARTMENT OF JUSTICE FOR LEAVE TO
FILE A BRIEF *AMICUS CURIAE***

The Antitrust Division of the United States Department of Justice (“Division”), pursuant to Rule 73 of the Federal Maritime Commission’s (“Commission”) Rules of Practice and Procedure, 46 C.F.R. § 502.73, respectfully moves the Commission for leave to file a brief as *amicus curiae* in this matter beyond the seven days contemplated in 46 C.F.R. § 502.73(c), for cause shown. The Division is filing its brief conditionally with this motion, as provided by 46 C.F.R. § 502.73(a), as Attachment 1.

The Division believes that its proposed amicus brief will help to clarify two issues that have arisen in this matter: (1) the Division’s business review procedure; and (2) what weight, if any, the Commission should give to a business review letter that the Division issued in 2014 to independent equipment providers FlexiVan Leasing, Inc. and Direct ChassisLink, Inc.

Good cause exists to grant this motion. First, the Division’s submission will not prejudice either party. Given the procedural posture of this case, this filing will not delay the proceedings.

Second, the Division's submission will benefit the public interest, by clarifying for the public the issues identified above.

For the foregoing reasons, the Division moves the Commission for leave to file a brief amicus curiae, included conditionally as Attachment 1.

Dated: June 20, 2024

Respectfully submitted,

/s/ Craig L. Briskin

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CERTIFICATE OF SERVICE

I, Craig Briskin, certify that on June 20, 2024, a true and current copy of the foregoing Motion of the Department of Justice, Antitrust Division, for Leave to File a Brief *Amicus Curiae* was filed electronically with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for Complainant and counsel for the

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